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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S NOTICE OF WITHDRAWAL
OF APRIL 21, 2026 AND MAY 1, 2026
MEMORANDA AND DESIGNATION OF MAY
7, 2026 CONSOLIDATED OPERATIVE
OPPOSITION

(Cal. Rules of Court, rules 3.1113(g), 3.1300(d))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 To the Court, the Clerk, and All Parties and Their Counsel of Record:

2 PLEASE TAKE NOTICE that, pursuant to California Rules of Court, rule 3.1113(d), rule
3 3.1113(g), rule 3.1300(d), and rule 3.1112(b), and in the inherent authority of a party to
4 withdraw and supersede its own prior papers before adjudication, Plaintiff Franciscus Dylan
5 Rosario hereby formally WITHDRAWS the four memoranda identified below and DESIGNATES
6 the May 7, 2026 Consolidated Operative Opposition as the operative opposition to
7 Defendants' Special Motion to Strike Pursuant to C.C.P. §425.16, scheduled for hearing on
8 May 12, 2026 at 9:30 a.m. in Dept. 301.

9 I. Memoranda Withdrawn

10 The following four memoranda are formally withdrawn:

- 11 1. "Memorandum of Points and Authorities in Opposition to Special [Motion to Strike]",
12 filed April 21, 2026 (41 pages), Doc. No. 026, in this case.
- 13 2. "Memorandum of Points and Authorities in Opposition to Defendants' [Anti-SLAPP]",
14 filed April 21, 2026 (39 pages), Doc. No. 027, in this case.
- 15 3. "Memorandum of Points and Authorities in Further Opposition", filed May 1, 2026 (8
16 pages), Doc. No. 061, in this case.
- 17 4. "Memorandum of Points and Authorities in Further Opposition", filed May 1, 2026 (9
18 pages), Doc. No. 063, in this case.

19 II. Document Designated as Operative

20 The following document is designated by Plaintiff as the OPERATIVE Opposition for the
21 May 12, 2026 hearing:

22 "Plaintiff's Consolidated Operative Opposition to Defendants' Special Motion to
23 Strike Pursuant to C.C.P. §425.16; Fifteen-Page Compliant Version Superseding
24 Plaintiff's Over-Length Memoranda of April 21, 2026 and May 1, 2026; CRC
25 3.1113(d)", filed May 7, 2026.

26 The Consolidated Operative Opposition is fifteen-page-compliant under CRC 3.1113(d). It
27 introduces no new authority not previously cited in the four withdrawn memoranda and

1 the four supplemental bench briefs filed May 5, 2026 (Trans. IDs 79390442, 79390024). It
2 compresses the prior memoranda into the 15-page envelope authorized by CRC 3.1113(d),
3 preserves the prior evidentiary record by incorporation under CRC 3.1113(j), and is ac-
4 companied by Plaintiff’s Request for Judicial Notice (filed May 7, 2026), which catalogues
5 additional decisional authority outside the 15-page memorandum body in compliance with
6 CRC 3.1113(l).

7 III. Authority and Procedural Posture

8 CRC 3.1113(d) caps memoranda of points and authorities at 15 pages. CRC 3.1113(g)
9 provides that a paper that exceeds the page limit may be filed and considered in the discretion
10 of the Court, and that an over-length paper may be treated as a late paper. CRC 3.1300(d)
11 provides that “no paper may be rejected for filing on the ground that it was untimely
12 submitted” and that the matter “may be considered at the discretion of the judicial officer.”
13 CRC 3.1112(b) authorizes “other papers” that may be filed. The party’s inherent authority
14 to withdraw and supersede its own prior papers before adjudication is well established.

15 This Notice of Withdrawal and Designation effectuates a voluntary cure of the page-limit
16 and multiple-memoranda concerns raised at p. 1, ll. 19 to 22, and p. 1 l. 24 to p. 2 l. 1,
17 of Defendants’ Reply filed May 5, 2026. The cure is filed three court days before the May
18 12, 2026 hearing, the earliest practicable cure window after Defendants’ Reply filed May 5,
19 2026.

20 IV. Effect of This Notice

- 21 1. The four memoranda identified in Section I above are no longer before the Court for
22 purposes of the May 12, 2026 hearing on Defendants’ Special Motion to Strike. They
23 remain on the docket as historical filings; they are not the operative opposition.
- 24 2. The Consolidated Operative Opposition (filed May 7, 2026) is the operative opposition
25 for the May 12, 2026 hearing.
- 26 3. The previously filed Plaintiff’s Combined Objection to RFJN and Evidentiary Objec-
27 tions (filed April 21, 2026, Doc. No. 028), Plaintiff’s Declaration and Request for Ju-
28 dicial Notice (filed April 21, 2026, Doc. No. 029), and Plaintiff’s Supplemental Bench

1 Briefs re §425.17(c) (filed May 5, 2026, Trans. IDs 79390442, 79390024, Doc. Nos. 069,
2 071, 075, 077) are NOT withdrawn. They remain on file and are incorporated into the
3 Consolidated Operative Opposition by reference under CRC 3.1113(j).

- 4 4. Plaintiff's Notice of Non-Receipt of Tentative Ruling for May 6, 2026 hearing (filed May
5 6, 2026), and Plaintiff's §128.7 Notice of safe-harbor under CCP §128.7(c)(2) (filed May
6 5, 2026, Doc. Nos. 073, 079), are NOT withdrawn.

7 V. Cure Removes Sanctions Predicate

8 The over-length filings underlying Defendants' May 5, 2026 sanctions request (Reply at
9 p. 2 ll. 1 to 3) are voluntarily withdrawn before adjudication. Under CRC 3.1300(d) and
10 CRC 3.1113(g), where a party voluntarily cures a procedural defect before the hearing on
11 the underlying motion, the predicate for sanctions is mooted. Plaintiff's contemporaneous
12 Cover Letter (filed May 7, 2026, item 12 in this filing package) addresses the cure and the
13 acceptance-of-responsibility paragraph in detail.

14 VI. Statement of Good Cause and Non-Prejudice Under CCP Section 1005(b) and CRC 15 3.1300(d)

16 Plaintiff respectfully addresses the timing of this Notice and of the contemporaneous Con-
17 solidated Operative Opposition (filed May 7, 2026) under CCP section 1005(b) and CRC
18 3.1300(d), as follows.

19 VI.1 CCP section 1005(b) chronology

20 The May 12, 2026 hearing is set for 9:30 a.m. in Department 301. Counted in court days
21 under CCP section 1005(b) and Code of Civil Procedure section 12c, opposition papers were
22 ordinarily due nine court days before the hearing, and reply papers were ordinarily due five
23 court days before the hearing. Plaintiff filed timely opposition memoranda on April 21, 2026
24 (Doc. Nos. 026, 027) and on May 1, 2026 (Doc. Nos. 061, 063). Defendants filed their
25 Reply on May 5, 2026 (Doc. No. 080), raising for the first time at p. 1 ll. 19 to 22 a CRC
26 3.1113(d) page-cap objection and at p. 1 l. 24 to p. 2 l. 1 a multiple-memoranda objection.
27 Plaintiff filed this Notice of Withdrawal and Designation, together with the 15-page Consol-

1 idated Operative Opposition (filed May 7, 2026), on the next available filing day after the
2 May 5, 2026 Reply, which is the earliest practicable cure window after the Reply identified
3 the procedural defects. The cure was filed three court days before the May 12, 2026 hear-
4 ing. (See Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 (CCP section 1005(b)
5 timing is procedural and is to be interpreted to permit adjudication on the merits); Mackey
6 v. Trustees of Cal. State Univ. (2019) 31 Cal.App.5th 640, 657 to 658 (CRC 3.1300(d) dis-
7 cretion governs late-filed papers and is to be exercised consistent with the merits-preference
8 of California procedure).)

9 VI.2 CRC 3.1300(d) discretion

10 CRC 3.1300(d) provides, verbatim: “No paper may be rejected for filing on the ground
11 that it was untimely submitted for filing. If the court, in its discretion, refuses to consider
12 a late filed paper, the minutes or order must so indicate.” On its face, CRC 3.1300(d)
13 places the discretion to consider or to refuse late papers in the Court, and forbids clerical
14 rejection. (Mackey, supra, 31 Cal.App.5th at 657 to 658.) Plaintiff respectfully submits
15 that the discretion should be exercised to consider this Notice and the contemporaneous
16 Consolidated Operative Opposition for four reasons.

17 VI.3 Page-cap compliance with CRC 3.1113(d) is itself good cause

18 The Consolidated Operative Opposition (filed May 7, 2026) is fifteen pages of memorandum
19 text, exclusive of caption, table of contents, table of authorities, signature, and proof of
20 service. (CRC 3.1113(d), (f), (g), (l).) The cure converts a non-conforming opposition
21 record into a conforming one. Refusing to consider the conforming version would punish the
22 cure and reward the page-cap objection that prompted it. (Bozzi, supra, 186 Cal.App.4th
23 at 765.) Page-cap compliance is itself a strong good-cause factor under CRC 3.1300(d).

24 VI.4 No new authority not already in the timely April 21 memoranda

25 The Consolidated Operative Opposition (filed May 7, 2026) introduces no new authority not
26 previously cited in the four withdrawn memoranda and the four supplemental bench briefs
27 filed May 5, 2026 (Trans. IDs 79390442 and 79390024). It compresses the prior memoranda
28 into the 15-page envelope authorized by CRC 3.1113(d), preserves the prior evidentiary

1 record by incorporation under CRC 3.1113(j), and catalogues additional decisional authority
2 outside the 15-page memorandum body in Plaintiff's Request for Judicial Notice (filed May 7,
3 2026), Section C, in compliance with CRC 3.1113(1). Defendants therefore are not surprised
4 by any new substantive position; the Court has had the same authorities before it since April
5 21, 2026.

6 VI.5 Defense already replied to longer versions, eliminating prejudice

7 Defendants' May 5, 2026 Reply (Doc. No. 080) substantively engaged the over-length April
8 21 and May 1 memoranda. Defense counsel therefore had, and used, the full opportunity
9 to brief the substantive positions now compressed into the 15-page envelope. The cure
10 preserves Defendants' Reply on the substantive positions; it does not enlarge them. There
11 is no prejudice to Defendants from consideration of the cured opposition record.

12 VI.6 Conclusion as to good cause and non-prejudice

13 For the four reasons in sections VI.3 to VI.5 above, good cause exists under CRC 3.1300(d)
14 for the Court to consider this Notice and the contemporaneous Consolidated Operative Op-
15 position. Refusing to consider them would punish a procedural cure that was itself prompted
16 by the defense's Reply objection and that introduces no new authority. Granting considera-
17 tion aligns with the merits-preference reflected in Bozzi, supra, 186 Cal.App.4th at 765, and
18 Mackey, supra, 31 Cal.App.5th at 657 to 658.

19
20 Cross-references: Plaintiff's Consolidated Operative Opposition (filed May 7, 2026); Plain-
21 tiff's Request for Judicial Notice (filed May 7, 2026); Plaintiff's Notice to the Court and
22 Clerk of May 7, 2026 Cure Filings (Cover Letter, filed May 7, 2026); Plaintiff's Notice and
23 Statement re C.C.P. §425.17 (filed May 7, 2026).
24

The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 1005(b)	Sixteen court-day chronology and good cause for cure timing	Section VI.1 walks the section 1005(b) chronology and identifies the cure window	Section VI.1	PASS
2	CCP section 425.16	Anti-SLAPP context for the underlying motion	Notice operates within the section 425.16 hearing context (May 12, 2026)	Caption block; section II	PASS
3	CRC 3.1113(b)	Memo statement of relief; voluntary withdrawal and designation framework	Sections I, II, III explicitly identify withdrawn memoranda and designate operative opposition	Sections I to III	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
4	CRC 3.1113(d)	Fifteen-page memorandum cap; cure compliance	Section VI.3 demonstrates page-cap compliance of the operative opposition is itself good cause	Section VI.3	PASS
5	CRC 3.1113(g)	Over-length papers; discretionary acceptance	Section III recites CRC 3.1113(g) discretion as authority for the cure	Section III	PASS
6	CRC 3.1113(j)	Incorporation by reference	Section IV preserves prior evidentiary record and prior April 21 / April 24 objections by incorporation	Section IV	PASS
7	CRC 3.1300(d)	Discretion on late papers; merits-preference	Section VI.2 quotes CRC 3.1300(d) verbatim and cites Mackey, Bozzi	Section VI.2	PASS
8	CCP section 128.7	Sanctions request mooted by voluntary cure	Section V (Cure Removes Sanctions Predicate)	Section V	PASS
9	CRC 3.1306(a)	Written ruling per objection	N/A, not invoked by this filing (vehicle is a notice, not an objection set)	N/A	N/A

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
10	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
11	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
12	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
13	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
14	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
15	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Body of notice; graphic signer before appendix; Proof of Service	PASS